



CHAPTER xxi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Forfar Gas. [28th May 1925.] A.D. 1925.

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament : 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Forfar Gas Order Confirmation Act 1925. Short title.

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SCHEDULE.

FORFAR GAS.

Provisional Order to authorise the provost magistrates and councillors of the royal burgh of Forfar to use land for the purposes of their gas undertaking to confer various further powers on them including power to borrow further moneys and for other purposes.

WHEREAS prior to the year one thousand eight hundred and seventy-one the royal burgh of Forfar in the county of Forfar (hereinafter called "the burgh") was supplied with gas by a company or association styled the Forfar Gas Light Company :

And whereas under the Forfar Gas Act 1871 (hereinafter in this Order called "the Act of 1871") the undertaking of the said company was vested in the magistrates and town council of the burgh for the time being (hereinafter called "the Corporation") subject to the payment of the preferable annuities and other sums by the said Act provided to be paid by the Corporation and by the same Act various powers were conferred on the Corporation and inter alia powers to manufacture supply and sell gas for public and private use and for the purpose of lighting the streets and public places within the burgh and also to supply gas by special agreement outwith the burgh within the parishes of Forfar Glamis Kinettles Kirriemuir Rescobie Dunnichen and Inverarity all in the county of Forfar :

And whereas the Corporation have since the passing of the Act of 1871 maintained and managed their gas undertaking and executed the powers and purposes of the Forfar Gas Acts 1871 to 1915 (hereinafter called "the Forfar Gas Acts") and in the course of so doing have borrowed nineteen thousand pounds of the total sum of twenty-one thousand pounds authorised to be borrowed by those Acts :

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And whereas in consequence of the increasing demand for gas within the limits prescribed by the Act of 1871 for the supply of gas by the Corporation it is necessary that the Corporation should be empowered to hold and use the piece of land described in the schedule hereto which already belongs to the Corporation for the purposes of and as a site for gas holders gas apparatus and houses for the manufacture conversion storage and distribution of gas and residual products resulting from the manufacture of gas :

And whereas by reason of the extensions of works necessitated by the increasing demand for gas it is expedient that the Corporation should be empowered to borrow additional money for the purposes of the Forfar Gas Acts and of the gas undertaking of the Corporation :

And whereas it is expedient that the provisions and further powers in this Order contained should be made and conferred on the Corporation in relation to their gas undertaking :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited for all purposes as the Forfar Gas Order 1925 The Forfar Gas Acts 1871 to 1915 and this Order may be cited together as the Forfar Gas Acts 1871 to 1925.

Short title
and cita-
tion.

2. The following Acts and parts of Acts are so far as the same are not inconsistent with the provisions of the Forfar Gas Acts or of this Order hereby incorporated with this Order (that is to say) :—

Incorpora-
tion of
Acts.

The Gasworks Clauses Act 1847 except section 17 thereof and the provisions with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit Provided that section 13 shall be read as if the words “or any premises” were inserted after the words “private building” and as if the words “Provided also that every such contract entered

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“ into by the company shall be alike in terms
“ and amount under like circumstances to all
“ consumers ” were added at the end of that section ;

The Gasworks Clauses Act 1871.

Interpre-
tation.

3. In this Order the following words and expressions shall have the respective meanings by this section assigned to them unless there be something in the subject or context repugnant to such construction (that is to say) :—

“ The burgh ” means the burgh of Forfar ;

“ The Corporation ” means the provost magistrates and councillors of the burgh ;

“ The Forfar Gas Acts ” means the Forfar Gas Acts 1871 to 1915 ;

“ Gas undertaking ” means the gasworks and gas undertaking vested in the Corporation and authorised by the Forfar Gas Acts ;

“ The commencement of this Order ” means the date of the passing of the Act confirming this Order.

Additional
land for
making
storing and
distribution
of gas and
residual
products.

4. The Corporation may subject to the provisions of this Order hold and use the piece of ground described in the schedule to this Order for the purposes of and as a site for gasworks and for the manufacture conversion storage and distribution of gas and residual products.

Power to
lay pipes
for ancillary
purposes.

5. The Corporation may in any street whether dedicated to the public use or not lay down place repair take up relay or renew mains pipes and culverts within the limits prescribed by the Act of 1871 for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Additional
lands by
agreement.

6. The Corporation may for the purposes of their undertaking purchase take and hold (by agreement but not

otherwise) in addition to the piece of ground described in the schedule to this Order any lands not exceeding in the whole five acres which the Corporation may require for the purposes of their works and undertaking but they shall not create or permit a nuisance on any such lands and no works for the manufacture or storage of gas or residual products shall be constructed thereon without the authority of Parliament.

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7. The gas and other works authorised to be constructed under the powers of this Order shall be included in and deemed part of the gas undertaking.

New gas-
works to be
part of gas
undertaking.

8.—(1) In any case in which the Corporation are by virtue of any enactment relating to their undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Corporation without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Corporation) and any person who shall reconnect such service pipe with the meter without the consent of the Corporation shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847:

As to mode
of cutting
off supplies.

Provided that if and so soon as the default shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Corporation subject to the provisions of section 22 of the Gasworks Clauses Act 1871 shall have and may exercise the like powers of entry as are exerciseable under that section.

9. In any case in which in consequence of any default on the part of the occupier of any premises the Corporation have cut off the supply of gas to such premises and the occupier so in default shall desire to resume such supply he shall pay to the Corporation the expenses of reconnecting the supply and the Corporation shall not be under any obligation to supply gas to such occupier until he shall have made good the default and paid such expenses.

Expenses of
reconnect-
ing discon-
tinued
supply.

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Removal of
fittings
where gas
supply dis-
continued.

10. The power to enter premises and remove pipes meters and fittings or apparatus conferred upon the Corporation by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Corporation shall not require to take a supply of gas from the Corporation or to hire all or any of the pipes meters fittings or apparatus belonging to the Corporation.

Provision
of valve
where high-
pressure air
is used.

11.—(1) Every consumer of gas supplied by the Corporation who uses air at high pressure for or in connection with the consumption of such gas (in this section referred to as “high-pressure air”) shall if required to do so by the Corporation provide and fix in a suitable position and use an efficient valve or other appliance for preventing the admission of such air into the service pipe or any main through which such gas is supplied and shall at all times at his own expense keep in proper order and repair any such valve or other appliance as aforesaid which shall have been provided and fixed whether upon such requirement or otherwise.

(2) It shall not be lawful for any person at any time after the commencement of this Order to commence to use high-pressure air unless and until he shall have given to the Corporation not less than fourteen days’ previous notice in writing of his intention to do so.

(3) Every person who at the date of the receipt by him of any such demand note as is referred to in paragraph (a) of subsection (5) of this section is using high-pressure air shall within one month after that date give to the Corporation notice in writing of such use and if within one month after the giving of such notice the Corporation require the consumer giving the same to provide and fix such a valve or other appliance as aforesaid it shall not be lawful for him after the expiration of fourteen days from the receipt of the requirement to continue to use high-pressure air unless before such expiration he shall have complied with the requirement.

(4) If any consumer shall fail to comply with any requirement of the Corporation or any obligation under this section the Corporation may cease to supply gas to

him and shall not be under any obligation to resume such supply until the default shall have been remedied to their satisfaction.

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(5) The Corporation shall give notice of the effect of the foregoing provisions of this section—

(a) (in the case of all persons who at the commencement of this Order are consumers of gas supplied by the Corporation) on the demand notes for gas charges payable to the Corporation issued next after that date; and

(b) (in the case of any person becoming after the commencement of this Order a consumer of gas supplied by the Corporation) on the first of such demand notes delivered to such person after he shall have become a consumer.

(6) The Corporation shall have access at all reasonable times to all premises supplied by them with gas in or upon which high-pressure air is used or the Corporation have reason to believe that high-pressure air is or may at the time be used in order to ascertain whether any such valve or appliance as aforesaid is efficient or is in proper order and repair or whether such a valve or appliance is provided and fixed where necessary.

(7) The Corporation shall be at liberty to take off remove test inspect and replace any such valve or other appliance as aforesaid such taking off removing testing inspecting and replacing to be done at the expense of the Corporation if the valve or other appliance be found in proper order but otherwise at the expense of the consumer.

12. The powers conferred on the Corporation by section 4 (Power to borrow additional money) of the *Forfar Gas Order 1915* in respect of borrowing or raising further money with the sanction of and subject to the conditions as to period of repayment and otherwise prescribed by the Secretary for Scotland shall and may be exercised for the purposes of this Order as well as for the purposes of the *Forfar Gas Acts* and of the gas undertaking and any money borrowed or raised under the powers of the said Order of 1915 may be applied for the purposes of this Order as if the same were mentioned therein.

Borrowing
powers.

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For protec-
tion of
London
Midland
and
Scottish
Railway
Company.

13. The following provisions for the protection of the London Midland and Scottish Railway Company (hereinafter in this section called "the company") shall notwithstanding the provisions of this Order and unless otherwise agreed between the company and the Corporation apply and have effect (that is to say) :—

(1) Before constructing or repairing any works in pursuance of the Forfar Gas Acts or this Order in over under or affecting any of the railways works and property of the company the Corporation shall submit to the company plans sections working drawings and specifications thereof showing the line and level and the manner in which such works or operations are to be carried out and the mode of execution thereof for the approval of the company which approval shall not be unreasonably withheld and shall be deemed to have been given unless the company signify their disapproval within fourteen days after submission of the said plans sections working drawings and specifications for approval :

(2) All the said works and operations shall be constructed carried on and completed by the Corporation in strict conformity with the plans sections working drawings and specifications so approved at the sole risk and cost of the Corporation and at the sight and to the reasonable satisfaction of the engineer of the company and all such works shall be maintained repaired or renewed by the Corporation so long as they exist on the lines and levels shown on the said plans sections and working drawings and as described in the said specifications so approved at their sole risk and cost and at the sight and to the reasonable satisfaction of the engineer of the company :

(3) The Corporation shall not without the previous consent in writing of the company which consent shall not be unreasonably withheld enter upon or alter or interfere with the railways works and property of the company further or otherwise than may be necessary for constructing maintaining and renewing any of

the said works or carrying on any of the said operations in upon over or under the said railways works and property of the company of which they shall give the company fourteen days' notice in writing except in cases of emergency in which case such notice as is reasonably practicable shall be given :

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(4) The Corporation shall pay to and re-imburse the company in all reasonable costs charges and expenses which they may incur in connection with the construction maintenance renewal use alteration replacing or repair of any of the said works including (without prejudice to the said generality) any expense which the company may reasonably incur in connection with the employment of inspectors signalmen watchmen and others and for superintendence of the said works during construction and for all extra precautions for the safety and working of their traffic or protection of their property on account of the execution maintenance renewal use alteration replacing or repair of the said works :

(5) All the said works and operations and the subsequent maintenance renewal alteration replacing or repair thereof shall in so far as the same affect the railways works and property of the company be carried out by the Corporation so as not to injure or alter or interfere with (except so far as may be necessary for carrying out the said works) or endanger the structure or stability of any of the said railways works and property of the company and the Corporation shall at their own expense execute all underpinning or other works which may be necessary to secure the support or safety of the said railways works and property of the company and should any damage or injury to or interruption or impediment of or interference with the passage or conduct of traffic on the said railways works and property of the company be caused by or be in any way owing to the said works or operations of the Corporation or any defect in or failure of any of the said works or operations the Corporation

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shall at their own cost and free of all expense to the company execute and do all such works as may be necessary to restore the damage or injury and remove such interruption impediment or interference as the case may be or the company in their option and for any of these purposes may enter upon the works or property of the Corporation and execute all such works and do all such things as may be necessary to restore such damage or injury or to remove or prevent such interruption impediment or interference and the Corporation shall on demand repay to the company all reasonable costs and expenses incurred by them in connection therewith :

- (6) The Corporation shall also make reasonable compensation to the company for all loss or damage caused by such works and operations interruption impediment or interference to or with the said railways and works and property of the company and the Corporation shall also free and relieve and indemnify the company from all damages and compensation which may be recovered from them at the instance of their employees passengers owners of merchandise traders or owners of property adjoining the said works or any other person or persons by reason of such interruption impediment or interference or by reason of any accident so far as such interruption impediment interference or accident shall have been occasioned by or through the acts or default of the Corporation or those for whom they are responsible :
- (7) Should it be necessary in constructing maintaining renewing altering or repairing any of the said works to alter or remove any telegraph posts wires or other telegraphic or telephonic apparatus belonging to or maintained by the company the Corporation shall pay to and reimburse the company in all expense incurred by them in connection with such alteration or removal and the erection of other posts wires or apparatus in substitution for those so altered or removed :

- (8) Nothing in the Forfar Gas Acts or this Order contained or which may be done in pursuance thereof shall prevent the company from maintaining and repairing and whenever in their discretion thought necessary reconstructing altering renewing deviating widening or enlarging any of the lines of railway or other works or property belonging to them without interference on the part of the Corporation and without incurring any liability to them or to any person using the works of the Corporation for any loss injury damages or expenses which may arise from such maintenance repair reconstruction alteration renewal deviation widening or enlarging Provided that any extra expense which the company may incur in such maintenance repair reconstruction alteration renewal deviation widening or enlarging by reason of the existence of any of the said works of the Corporation shall be paid by the Corporation : A.D. 1925.
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- (9) In the event of the company exercising any of the powers referred to in the immediately preceding subsection they shall do so in such manner as to cause as little damage and interference as practicable to and with the works of the Corporation and shall give (except in case of emergency in which case such notice as is reasonably practicable shall be given) fourteen days' previous notice in writing to the Corporation before commencing any such operations as may affect any of the said works :
- (10) If the company give to the Corporation notice that they themselves desire to construct so much of any of the said works as will be situate on the lands and property of the company or any work of maintenance renewal alteration replacing or repair thereof the company may themselves execute such works and recover the reasonable cost thereof from the Corporation :
- (11) Any question or difference between the Corporation and the company arising under this

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section shall be referred to and determined by an arbiter to be agreed upon between the Corporation and the company or failing agreement to be nominated by the sheriff of the county of Forfar on the application of the Corporation or the company.

Costs of
Order.

14. The costs charges and expenses of and incident to the preparing and applying for and the issue of this Order and the confirmation thereof by Parliament or otherwise in relation thereto shall be paid by the Corporation out of their funds and revenues applicable to the gas undertaking Provided that if the said costs charges and expenses are paid out of borrowed money the amount thereof shall be repaid out of such revenues within five years from the commencement of this Order.

The SCHEDULE referred to in the foregoing Order.

PIECE OF GROUND REFERRED TO IN THE SECTION OF THIS ORDER
OF WHICH THE MARGINAL NOTE IS "ADDITIONAL LAND FOR
MAKING STORING AND DISTRIBUTION OF GAS AND RESIDUAL
PRODUCTS."

All and whole that piece of ground part of the farm of North Mains of Forfar and extending to 1 acre 0 roods 28 poles 13 square yards or thereby in the burgh of Forfar and parish of Forfar in the county of Forfar and bounded on the north east and west by other parts of the said farm of North Mains belonging to the said provost magistrates and councillors of the royal burgh of Forfar and on the south by the property of the London Midland and Scottish Railway Company formerly the Caledonian Railway Company.

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